

Court No. - 21

Case :- WRIT - C No. - 34543 of 2024

Petitioner :- Bhoop Singh

Respondent :- State Of Up And 4 Others

Counsel for Petitioner :- Rahul Kumar Tyagi, Virpratap Singh

Counsel for Respondent :- C.S.C., Gaurav Singh

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Anish Kumar Gupta, J.

1. Learned counsel for the Electricity Department prays for and is granted time to obtain instructions.
2. Put up this matter on **18.11.2024** as **fresh**.
3. In the meantime, no coercive measure shall be taken against the petitioner in pursuance of the impugned recovery citation.

Order Date :- 21.10.2024

Shubham Arya

(Anish Kumar Gupta, J.) (Manoj Kumar Gupta, J.)

Court No. - 29

Case :- WRIT - C No. - 34543 of 2024

Petitioner :- Bhoop Singh

Respondent :- State Of Up And 4 Others

Counsel for Petitioner :- Rahul Kumar Tyagi, Virpratap Singh

Counsel for Respondent :- C.S.C., Gaurav Singh

Hon'ble Vivek Kumar Birla, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

1. A prayer for adjournment is being made on behalf of learned counsel for the respondent-Corporation.
2. Put up this case on 12.12.2024 as fresh.
3. Interim order, if any, is extended till the next date of listing.

Order Date :- 18.11.2024

Abhishek

Court No. - 29

Case :- WRIT - C No. - 34543 of 2024

Petitioner :- Bhoop Singh

Respondent :- State Of Up And 4 Others

Counsel for Petitioner :- Rahul Kumar Tyagi, Virpratap Singh

Counsel for Respondent :- C.S.C., Gaurav Singh

Hon'ble Vivek Kumar Birla, J.

Hon'ble Ms. Nand Prabha Shukla, J.

1. Heard Shri Rahul Kumar Tyagi, learned counsel for the petitioner as well as Shri Ambrish Shukla, learned Additional Chief Standing Counsel appearing for the State respondent no.1 and Sri Gaurav Singh, learned counsel for the respondents no. 2 to 4 and perused the record.

2. Present petition has been filed with following prayer:-

"(i) Issue an appropriate writ, order or direction for quashing the recovery proceedings against the petitioner in pursuance of the recovery citation dated 31.07.2023 which has been issued from the office of Tehsildar, Tehsil Sarila, District Hamirpur, for recovering Rs.10,11,565/- + other charges showing the Electricity Dues over the petitioner.

ii. Issue a writ, order or direction in the nature of mandamus commanding and directing the respondent no.3 and 4 to decide the representation of the petitioner which has already filed on 28.12.203 as soon as possible."

3. While granting time to Respondent- Electricity Department, interim protection was granted to the petitioner. Today, Shri Gaurav Singh has produced before this Court certain documents which are taken on record, according to him the amount as is being reflected is correct.

4. Correctness of the same is being disputed by the learned counsel for the petitioner.

5. At this stage, learned counsel appearing for the respondent- Power Corporation submits that in view of the dispute as has been raised by the learned counsel for the petitioner, the petitioner would have effective alternative remedy under Clause 6.5 Electricity Supply Code, 2005 and he may approach the Authority concern for the same.

6. At this stage, learned counsel for the petitioner submitted that the petitioner has already approached the Authority concern for redressal of his grievances.

7. Be that as it may, present petition is disposed of with liberty to the petitioner to file a fresh representation before the authority concerned under clause 6.5. of the Code for redressal of his grievances along with certified copy of this order within ten days from today. The same shall be considered and decided by the authority concerned in accordance with law as per clause 6.5 of the Code.

Order Date :- 12.12.2024

Nitendra